

Tenant's Notice to Terminate - Standard

Residential Tenancies Act 2018 - Sections 18(1), 18(3)

Instructions

- Use this form when you want to inform the landlord that you are terminating the rental agreement as identified and permitted under the Residential Tenancies Act. All sections of this form are required to be completed. The tenant completing the form must place their signature at the bottom where required. Ending the rental agreement by one tenant named on the rental agreement ends the rental agreement for all tenants.

Authority and Notice Requirements

Part	Directions
Section 18(1)(a) Week to week rental agreement	If the rental agreement is week to week, the tenant must provide the landlord with termination notice of not less than 7 days before the end of the rental period.
Section 18(1)(b) Month to month rental agreement	If the rental agreement is month to month, the tenant must provide the landlord with termination notice of not less than 1 month before the end of the rental period.
Section 18(1)(c) Fixed term rental agreement	If the rental agreement is fixed term, the tenant must provide the landlord with termination notice of not less than 2 months before the end of the fixed term.
Section 18(3)(a) Rental agreement for a mobile home site	If the rental agreement is for a mobile home site, the tenant must provide the landlord with termination notice of not less than 1 month before the end of the rental period.
Notice before the end of the rental period	The notice period must include a full rental period. For example, in a month to month rental agreement where rent is paid monthly on the 1st of each month, if rent is paid on January 1st, the landlord must receive the termination notice from the tenant on or before January 1st for the rental agreement to end on January 31st. If the tenant provided notice to the landlord on December 15th, the proper termination date would still be January 31st and not January 14th because rent is paid on the 1st of the month and the notice period must include a full rental period.
Counting the days of notice required	The day the notice is received by the landlord and the day the tenant is scheduled to move out are not included in counting the number days in the notice period required to be provided.
Signature	The tenant issuing the termination notice must place their signature on the form where required.

Tenant's Notice to Terminate - Standard

Residential Tenancies Act 2018 - Sections 18(1), 18(3)

Service Requirements (Section 35(1))

- The tenant's notice to terminate may be delivered to the landlord by:
 - o sending it electronically where: (i) it is provided in the same or substantially the same form as the written notice or document; (ii) the landlord has provided an electronic address to receive documents, and (iii) it is sent to that electronic address;
 - o giving it personally to the landlord;
 - o giving it to a person 16 years of age or older who apparently lives with the landlord;
 - o posting it in a conspicuous place on the landlord's premises;
 - o placing it in the landlord's mailbox or under a door in the landlord's premises;
 - o sending it to the landlord by prepaid registered mail or prepaid express post or by courier service at an address (i) where rent is payable; (ii) provided by the landlord or (iii) where the landlord carries on business.
- Where the tenant's notice to terminate is sent electronically as indicated above, it will be considered served on the day it is sent if it is sent before 4pm. If the notice is sent after 4pm, it will be considered to be served on the next day which is not a weekend or statutory holiday.
- Where the tenant's notice to terminate is sent by registered mail or express post, it will be considered to be served on the 5th day after mailing.

Access to information and Protection of Privacy

- Service NL collects personal information relating to landlords and tenants under the authority of the Residential Tenancies Act, 2018. Personal information collected by the Government of Newfoundland and Labrador is protected under Section 40(1) of the Access to Information and Protection of Privacy Act, 2015. If you require more information please contact the Director of Residential Tenancies at (709) 729-2660.

Tenant's Notice to Terminate - Standard

Residential Tenancies Act 2018 - Section 18(1), 18(3)



Part 1 To: Landlord Information		
Landlord Name		
Part 2 From: Tenant Information		
Name Tenant #1	Name Tenant #2	
Part 3 Address of Residential Premises		
Street Number and Name		Apartment Number
City or Town	Province NL	Postal Code
Part 4 Move Out Date		
I am terminating my tenancy and moving out of the residential premises on:		Date (month day, year)
Part 5 Authority		
I am terminating the rental agreement under the authority of the Residential Tenancies Act, 2018 where the rental agreement is: (check one of the following)		
☐ Week to week - Section 18(1)(a) allows the tenant to move out not less than 7 days before the end of the rental period after notice is served.		
☐ Month to month - Section 18(1)(b) allows the tenant to move out not less than 1 month before the end of the rental period after notice is served.		
☐ Fixed Term - Section 18(1)(c) allows the tenant to move out not less than 2 months before the end of the fixed term period after notice is served.		
☐ Mobile Home Site - Section 18(3)(a) allows the tenant to move out not less than 1 month before the end of the rental period after notice is served.		
Part 6 Tenant Signature		
Tenant Signature		Date (month day, year)